

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lucinda Richard	Team: Team # 6	CCRB Case #: 200701392	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/24/2007 12:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/24/2008	Precinct: 60		
Date/Time CV Reported Thu, 01/25/2007 9:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/29/2007 4:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT John Todaro	05234	903307	PSA 1
2. POM Fadi Mansour	29211	928698	PSA 1
3. POM Erik Hirsch	17311	930356	PSA 1
4. POM Justin Farren	14035	930127	PSA 1
5. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jerry Bowens	24698	915334	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Todaro	Abuse: At § 87(2)(b) Sgt. John Todaro authorized officers to stop the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Justin Farren	Abuse: At § 87(2)(b) Officer Justin Farren frisked § 87(2)(b)	B . Unsubstantiated
C . Officers	Abuse: At § 87(2)(b) Officers searched the car in which § 87(2)(b) was an occupant.	C . Officer(s) Unidentified
D . POM Fadi Mansour	Force: At § 87(2)(b) Officer Fadi Mansour used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Erik Hirsch	Force: At § 87(2)(b) Officer Erik Hirsch used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM Justin Farren	Force: At § 87(2)(b) Officer Justin Farren struck § 87(2)(b) with an asp.	F . Unsubstantiated
G . Officers	Off. Language: At § 87(2)(b) Officers made remarks to § 87(2)(b) based upon race.	G . Officer(s) Unidentified
H . SGT John Todaro	Abuse: At the PSA1 station house, Sgt. John Todaro authorized the strip-search of § 87(2)(b)	H . Unsubstantiated
I . SGT John Todaro	Discourtesy: At the PSA1 station house, Sgt. John Todaro spoke rudely to § 87(2)(b)	I . Unsubstantiated
J . POM Fadi Mansour	Force: At the PSA1 station house, Officer Fadi Mansour used physical force against § 87(2)(b)	J . Unsubstantiated
K . POM Fadi Mansour	Discourtesy: At the PSA1 station house, Officer Fadi Mansour spoke rudely to § 87(2)(b)	K . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
L . Officers	Abuse: At the PSA1 station house, officers threatened § 87(2)(b) with the use of force.	L . Officer(s) Unidentified
M . Officers	Force: At the PSA1 station house, officers used physical force against § 87(2)(b)	M . Officer(s) Unidentified
N . Officers	Abuse: At the PSA1 station house, officers threatened to arrest § 87(2)(b)	N . Officer(s) Unidentified

Synopsis

On January 24, 2007, at approximately 12:15 a.m., § 87(2)(b) was driving in the vicinity of § 87(2)(b) and § 87(2)(b) without his car's headlights activated when Sgt. John Todaro authorized the PSA1 Anti-Crime team to stop his vehicle (Allegation A). Officers ordered § 87(2)(b) out of his car and asked for his ID, but he stated he did not have a driver's license with him. Officer Justin Farren allegedly frisked § 87(2)(b) at the back of his vehicle while two officers searched his vehicle (Allegations B and C). Then, Officer Farren swung a punch at § 87(2)(b) who ducked the punch and fled from the officers. Officer Farren, Officer Fadi Mansour, and Officer Erik Hirsch caught up with § 87(2)(b) at the back of § 87(2)(b). Officer Hirsch and Officer Mansour allegedly kicked and punched him repeatedly all over his body while Officer Farren struck him repeatedly with an asp (Allegations D, E, and F). Once § 87(2)(b) was in handcuffs, other uniformed officers arrived on scene. § 87(2)(b) allegedly heard officers calling him "nigger," but he could not distinguish who was saying that to him (Allegation G). Officers then transported § 87(2)(b) to the station house. Sgt. Todaro allegedly authorized officers to strip-search § 87(2)(b) both in the general precinct area and inside a holding cell (Allegation H). Inside the holding cell area, Sgt. Todaro allegedly said to § 87(2)(b) "We run this shit" (Allegation I). Meanwhile, Officer Mansour punched § 87(2)(b) in his face and in the ribs and told him, "Shut the fuck up" (Allegations J and K). A while later, officers entered the holding cell and threatened to use force against § 87(2)(b) if he did not cooperate and walk out to the ambulance (Allegation L). While § 87(2)(b) was in the holding cell area, § 87(2)(b) was inside the station house to inquire after § 87(2)(b)'s charges and why officers had used force when arresting him. Officers allegedly pushed § 87(2)(b) out of the station house and threatened to arrest her if she did not leave (Allegations M and N). § 87(2)(b) was charged § 87(2)(b).

§ 87(2)(g)
it is recommended that Allegation A be exonerated. § 87(2)(g)
it is recommended that Allegations B, D, E, F, H, I, J, and K be unsubstantiated. § 87(2)(g)
it is recommended that Allegations C, G, L, M, and N be closed as officers unidentified.

On July 24, 2007, this case was reassigned to Inv. Lucinda Richard following Inv. Dania Reid's departure.

Summary of Complaint

§ 87(2)(b)
On January 25, 2007, § 87(2)(b) called IAB and filed a complaint regarding the above incident (enc. 7a-c). That complaint was then forwarded and received by the CCRB on January 29, 2007 (enc. 8a-b). § 87(2)(b) provided an interview statement to the CCRB on March 2, 2007 (enc. 10a-b). § 87(2)(g)

On January 24, 2007, at approximately 11:45 p.m., § 87(2)(b) arrived home to § 87(2)(b) in Brooklyn to relieve § 87(2)(b) from his duties as caretaker of her son, § 87(2)(b). Ten minutes after § 87(2)(b) had left the apartment, § 87(2)(b) heard him screaming from outside the back of the building. § 87(2)(b) asked § 87(2)(b) who he called § 87(2)(b) to go downstairs because "they" were beating him up. § 87(2)(b) was at first hesitant to assist § 87(2)(b) because she thought local gang members were beating him up. After five-to-ten minutes, § 87(2)(b) went downstairs and saw approximately five plain-clothed officers striking § 87(2)(b) all over his body with their fists and with black, metal sticks. She was approximately seven feet away from the officers and § 87(2)(b). There were also uniformed officers on scene, but they were not participants. One of § 87(2)(b)'s hands was handcuffed to the scaffolding outside § 87(2)(b)'s building. § 87(2)(b) screamed and told the plain-clothed officers to stop beating § 87(2)(b).

After a while, officers transported § 87(2)(b) to the PSA1 station house. § 87(2)(b) went to the station house to get more information. She introduced herself to an officer and asked to speak with § 87(2)(b). He allowed her to enter the general area of the stationhouse. When she entered, she

heard § 87(2)(b) screaming from somewhere. § 87(2)(b) called out to § 87(2)(b) and asked if he was in the back of the precinct. § 87(2)(b) answered “yes” and said that the officers were still beating him. § 87(2)(b) yelled out that she would get him some kind of assistance. At that point, approximately twelve officers dressed in white shirts and plainclothes tried to make § 87(2)(b) leave the station house. The officers pushed her out of the precinct and threatened to arrest her for false impersonation of an officer. § 87(2)(b) asked to speak with a captain or sergeant and she was told that she could not speak with these officers. § 87(2)(b) walked away from the police officers to an unspecified location and called 911. She reported what was going on in the stationhouse. § 87(2)(b) EMS arrived at the station house and transported § 87(2)(b) to a hospital.

In addition to providing a statement about the incident involving § 87(2)(b), § 87(2)(b) alleged that on February 21, 2007, someone vandalized her door. § 87(2)(b) covered the damaged peephole with cardboard. She heard from § 87(2)(b) that officers had damaged her peephole and disconnected her cable wire. On February 22, 2007, sometime in the morning, § 87(2)(b) walked her son to school. By the time she returned to her home, the piece of cardboard had been tampered with, so § 87(2)(b) called 911. Two officers were dispatched to her home and filed a police report. Housing city workers came to her house that day and fixed the peephole. Then, at approximately at 6:00 p.m., on February 23, 2007, § 87(2)(b) witnessed two officers tampering with the boarded up peephole again. He called § 87(2)(b) on her cell phone as this occurred, and she recorded the noises that the officers were making as they were tampering with the cardboard on the outside of her door.

§ 87(2)(b)

On § 87(2)(b) § 87(2)(b) went to § 87(2)(b) and stated that he had a headache and pain in his left leg. His chief complaint was, “They brought me” (enc. 25a-bbbb). In § 87(2)(b)s arrest photo, taken on January 24, 2007, he does not have any visible injuries (enc. 9d).

On March 5, 2007, § 87(2)(b) a § 87(2)(b) black male weighing § 87(2)(b), with dark brown eyes and shaved head, was interviewed at the CCRB (enc. 9a-e).

§ 87(2)(b) takes care of § 87(2)(b)s son, § 87(2)(b). On January 24, 2007, § 87(2)(b) had just left § 87(2)(b)s apartment, located inside § 87(2)(b) in Brooklyn. He walked to his car, a 1995 Mitsubishi Gallant that was parked on the side of the building. § 87(2)(b) got in his car, turned on the ignition, and waited for the vehicle to warm up because it was cold outside. A black van he had noticed parked two or three car-lengths behind him pulled up alongside his car. Then, the officers inside the van activated its flashing police lights. Four-to-five officers exited the van and surrounded § 87(2)(b)s car. The officers told him to exit his car and asked for his license and registration. § 87(2)(b) remembered that he left his wallet in § 87(2)(b)s apartment, so he explained that to the officers and suggested that they run his name through their database. PO1 (a white male, 6’2” tall, weighing 300 pounds, with dirty blond hair—identified through the investigation as Officer Justin Farren) told § 87(2)(b) “that’s not how things work around here, buddy,” he then opened § 87(2)(b)s car door and pulled him out of the car. Officer Farren made him lean against the back window of the car and held him there. Officer Farren patted him down as other officers surrounded him. § 87(2)(b) asked the officers why they were “violating him,” but the officers did not respond to him. Two officers opened § 87(2)(b)s car door and searched his vehicle. § 87(2)(b) turned around to see what the officers were doing, but Officer Farren held onto him. He could not see which two officers were searching his car or where they were searching inside the car. § 87(2)(b) tried to take Officer Farren’s hands off of him, but Officer Farren threw a punch with his right fist at § 87(2)(b)s face. However, the punch did not make contact with § 87(2)(b)s face because he dodged the punch and ran away from the officers.

Officer Farren and other officers ran after him. § 87(2)(b) ran toward the back of § 87(2)(b)s apartment building and screamed for help. The officers caught up to § 87(2)(b) and one officer tackled him into the back door of § 87(2)(b). Several other officers hit § 87(2)(b) with their fists, feet, and asps, striking him all over his body, especially in his legs. § 87(2)(b) slumped to the ground from the blows. At that point, PO2 (white male, 6’1” -6’4”, 185-190 pounds, in shape, with slight eyes and a distinctive pointy nose—identified through the investigation as Officer Erik Hirsch) handcuffed § 87(2)(b) to a scaffold of the building. The other officers kept hitting him with their asps for five-to-ten minutes. § 87(2)(b) yelled out for § 87(2)(b) telling her that police officers were beating him up. He screamed for her to come outside the building. § 87(2)(b) came downstairs with her son, § 87(2)(b) and yelled for the officers to stop hitting § 87(2)(b).

§ 87(2)(b) When § 87(2)(b) asked the officers why they were treating § 87(2)(b) that way, the officers told her to “back the fuck up.”

Approximately one minute after § 87(2)(b) arrived, ten uniformed police officers arrived. The uniformed officers secured the area; they also instructed § 87(2)(b) to stay away from § 87(2)(b) and the plainclothes officers. After the uniformed police officers arrived, the plain-clothed officers unhandcuffed § 87(2)(b) from the scaffolding. As they were doing this, officers (he did not see which ones) were calling § 87(2)(b) “nigger” and using other racial slurs against him. § 87(2)(b) was unable to walk to the police transport car because of injuries to his legs, so the plain-clothed officers assisted him in walking to a marked vehicle. As the officers were escorting § 87(2)(b) to the car, they asked him if he had drugs on him. § 87(2)(b) told the officers that he did not have drugs on him and they beat him up for nothing. Just before § 87(2)(b) reached the marked patrol, Officer Hirsch stopped him in the middle of the street, pulled his pants down and strip-searched him. As Officer Hirsch was searching inside his pants in the area of his buttocks and genitals, he kept accusing § 87(2)(b) of having drugs. When Officer Hirsch found nothing, he transported § 87(2)(b) to the PSA1 station house.

At the station house, § 87(2)(b) stood at the front desk of the precinct. Officers handcuffed § 87(2)(b) s hands to a bar at the desk. PO3 (white male, 5’7” tall, with blond hair and blue or green eyes—identified through the investigation as Sgt. John Todaro) instructed other officers to search § 87(2)(b). § 87(2)(b) s arresting officer, Officer Fadi Mansour, and about ten uniformed officers approached § 87(2)(b). They had him spread his legs and all the officers strip-searched § 87(2)(b) in the general area of the precinct. § 87(2)(b) screamed as two or three uniformed officers guarded the entrance to the station house.

After a while, Sgt. Todaro told the officers to take § 87(2)(b) into the back of the precinct. § 87(2)(b) was brought to the holding cell area. There, Officer Mansour rubbed § 87(2)(b) s face in the jail bars and gave him “rib shots” as he held his face in the bars. § 87(2)(b) asked the officers why they beat him up. Sgt. Todaro responded, “Well, you know what happens when you run.” § 87(2)(b) referred to his injuries and told Sgt. Todaro that the officers had beaten him up. Sgt. Todaro responded, “What do you expect, a one-on-one? We’re the biggest gang that there is. We run this shit. Don’t act stupid, this is what happens when you run.”

Sgt. Todaro then left and § 87(2)(b) was left with Officer Mansour and four other plain-clothed officers. One of the plain-clothed officers there was an African American male named Officer Bowens § 87(2)(b) read his nameplate). The officers went into § 87(2)(b) s cell and strip-searched him again. After some time, § 87(2)(b) heard § 87(2)(b) call out to him from the station house near the front desk. She asked if he was in the back of the precinct. § 87(2)(b) yell “yes” and said that officers were still beating him up. After saying this, Officer Mansour used his right hand to hit § 87(2)(b) in the jaw and told him to “shut the fuck up.” § 87(2)(b) heard § 87(2)(b) yell for him not to worry because she was getting him help. Ten-to-fifteen minutes later, officers that § 87(2)(b) could not describe entered his cell carrying a bag and told him that he could either walk out to the ambulance or be “knocked out” and taken in the bag.

§ 87(2)(b) went to § 87(2)(b). He was first admitted to the psychiatric ward, but was later seen by a regular physician. § 87(2)(b) was not treated until later that night. As a result of his encounter with officers, § 87(2)(b) sustained scars and a “lump” on the left side of his head, as well as numbness to his jaw and wrists. § 87(2)(b) had bruises on his legs from the asps officers used against him.

After being treated at the hospital, § 87(2)(b) was brought back to PSA1 station house and, from there, he was taken to Central Booking. § 87(2)(b) did not know what he was being charged with until he his arraignment. He was charged § 87(2)(b).

After the arraignment, § 87(2)(b) was taken to Rikers Island. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Results of Investigation

Witness Statement: § 87(2)(b)

On March 2, 2007, § 87(2)(b) a Hispanic male, was interviewed at the CCRB (enc. 11a-c). § 87(2)(g)

he alleged that officers told § 87(2)(b) to “shut the fuck up.” Also, he

did not go to the station house with her so he did not testify regarding any allegations that took place there. § 87(2)(b) also alleged that officers were responsible for tampering with the cardboard covering on the front door's peephole at § 87(2)(b)'s apartment, but he did not describe the officers nor did he give any detail as to how the officers tampered with the cardboard. He believed the officers were responsible for the initial vandalism of the peephole.

Subject Officer Statement: Sgt. John Todaro

On May 15, 2007, Sgt. Todaro was interviewed at the CCRB (enc. 13a-c). Sgt. Todaro is a § 87(2)(b)-old white male, § 87(2)(b), weighing § 87(2)(b), with brown hair and blue eyes. On January 24, 2007, Sgt. Todaro and his partners, Officer Hirsch and Officer Farren, worked a tour that began on January 23, 2007, at 5:26 p.m. and ended at 2:10 a.m. on the date of incident. Sgt. Todaro was the PSA 1 Anti-Crime sergeant. He was dressed in plainclothes and assigned to an unmarked black van. Sgt. Todaro was the operator of their vehicle. Sgt. Todaro read the following from his memo book: "00:37, 1 under from the rear of § 87(2)(b) by Officer Mansour § 87(2)(b)

On January 24, 2007, at approximately 12:15 a.m., Sgt. Todaro, Officer Hirsch, Officer Farren, and Officer Mansour observed § 87(2)(b) (who was dressed in jogging pants and a shirt) driving on § 87(2)(b) coming from § 87(2)(b) without his lights on. They drove behind him for approximately one block until he turned onto § 87(2)(b) and drove towards § 87(2)(b). At that point, the officers activated their lights and sirens and pulled § 87(2)(b) for over driving at night without his headlights on (a VTL violation). § 87(2)(b) immediately pulled his car over. Officer Mansour approached the driver's side of the vehicle and Officer Farren approached on the passenger's side. Sgt. Todaro and Officer Hirsch remained at the back of § 87(2)(b)'s vehicle. Officer Mansour asked § 87(2)(b) for his license, registration, and insurance card. § 87(2)(b) responded that he did not have a driver's license or any paperwork for the vehicle he was driving. § 87(2)(b) never said he had his license or paperwork in someone else's car or apartment. Officer Mansour instructed him to get out of the car. As § 87(2)(b) opened his own car door and exited his car, he walked up to Sgt. Todaro, pushed him with two hands, almost knocked Sgt. Todaro to the ground, and started running into the projects that were right next to where the officers stopped his car. (Later, after the incident was over, Officer Mansour told Sgt. Todaro he had observed bullets in § 87(2)(b)'s car when he got out.) § 87(2)(b) was not frisked before he took off running towards the § 87(2)(b). None of the officers tried to throw a punch at § 87(2)(b) before he ran away from them. Other than § 87(2)(b) pushing Sgt. Todaro, there was no physical contact between the officers and § 87(2)(b) before he took off running.

Officer Mansour, Officer Hirsch, and Officer Farren chased after § 87(2)(b) (in that order) into the project housing development. Sgt. Todaro stayed with their vehicle and § 87(2)(b)'s vehicle. He called for backup to secure § 87(2)(b)'s vehicle. A few seconds later, other units came over the radio stating that they were responding to the location. Upon hearing this, Sgt. Todaro took off running in the direction the other officers had gone. When Sgt. Todaro reached the rear of § 87(2)(b) (about half of a city block away from where the officers conducted the car stop), he observed Officer Hirsch, Officer Mansour, and Officer Farren with § 87(2)(b) rear-cuffed. § 87(2)(b) was still screaming and behaving violently. He was kicking his legs, moving his torso around, and resisting being escorted by the officers. One of § 87(2)(b)'s kicks made contact with some part of Officer Farren's body, possibly his arm or shoulder. Officer Farren went to § 87(2)(b) after the incident.

The three officers and Sgt. Todaro walked § 87(2)(b) back to their vehicle and transported him to the station house. There were several marked units at the scene and officers dressed in uniform. There were no other plain-clothed officers on the scene. There were no civilians gathered at § 87(2)(b) or at the location of the car stop. One of the marked cars transported § 87(2)(b) to the station house, but Sgt. Todaro did not know which officers transported him. Those officers tried to search § 87(2)(b) for weapons before transport, but he "flipped out" and screamed and kicked at officers. He kept reaching for his waistband and sticking his hands in his pants, like he was trying to hide something there. Based on his movements and the ammunition in his car, Sgt. Todaro believed § 87(2)(b) was trying to conceal something—either a firearm or drugs. Sgt. Todaro relayed this fear to the transporting officers before they took him to the PSA 1 station house. When Sgt. Todaro and the other three officers arrived at the station house, § 87(2)(b) was at the front desk being processed. Sgt. Todaro did not

know the identity of the desk officer that day. The desk was brick with a bar in front of it. § 87(2)(b) was not handcuffed to that bar.

When Officer Mansour tried to search § 87(2)(b) he began screaming “I didn’t do anything, don’t touch me! Leave me alone!” § 87(2)(b) complained of pain to his legs. Eventually, Officer Mansour was able to conduct the search of § 87(2)(b)’s pockets. However, § 87(2)(b) kept kicking his legs and turning his body away from Officer Mansour, so the search was not completely successful. No officers in uniform searched § 87(2)(b). Then, Officer Mansour and Officer Hirsch brought § 87(2)(b) to the rear holding cell area. A few seconds later, Sgt. Todaro went back to that holding cell area. Sgt. Todaro authorized a strip search of § 87(2)(b) and noted the strip search in the command log. Officer Mansour and Officer Hirsch lifted up § 87(2)(b)’s shirt, pulled down his pants and underwear, and then put his clothes back on. The officers did not enter any of § 87(2)(b)’s body cavities. Eleven bags of Heroin were recovered from § 87(2)(b)’s underwear. No officer struck § 87(2)(b) in his stomach or ribs and no officer held his face into the bars in the holding cell area. No officer used profanity or said, “Don’t act stupid. This is what happens when you run.” No officer threatened § 87(2)(b) with force.

Because § 87(2)(b) had been complaining of his legs hurting when he arrived at the station house, and because he had been behaving violently, Sgt. Todaro called an ambulance to the station house. At some point, Officer Mansour searched § 87(2)(b)’s car at the station house and recovered 40 bags of heroin and ammunition for multiple types of firearms. Sgt. Todaro did not know at what point Officer Mansour searched § 87(2)(b)’s car.

Sgt. Todaro did not recall seeing a Hispanic § 87(2)(b) woman either at the incident location or at the station house. He heard from other officers that § 87(2)(b) arrived at the station house and spoke to officers, but Sgt. Todaro did not interact with her or have any information regarding what occurred. Sgt. Todaro did not see or hear of § 87(2)(b) being handcuffed to the scaffolding of § 87(2)(b). Sgt. Todaro did not use any force against § 87(2)(b) but he heard from the officers that they fought with him because he violently resisted being handcuffed. Officer Farren struck § 87(2)(b) somewhere on his body with an asp during the struggle. No officer mentioned punching or kicking § 87(2)(b) and he never complained of any such events taking place. No officer cursed at § 87(2)(b) or called him “Nigger.”

Subject Officer Statement: Officer Fadi Mansour

On January 24, 2007, Officer Mansour filed § 87(2)(b)’s arrest report, UF 61, and property voucher (enc. 15a-b, 16a-b, and 17a). On those forms he stated that On January 24, 2007, at 12:25 a.m., § 87(2)(b) was observed operating a 1995 Mitsubishi Gallant without headlights. Officers stopped him and § 87(2)(b) said he did not have a driver’s license. Then, § 87(2)(b) fled on foot and was apprehended at the rear of § 87(2)(b). He resisted arrest by punching at officers. A search incident to a lawful arrest led to the recovery of a large quantity of heroin and crack cocaine, as well as ammunition rounds from his vehicle.

On July 2, 2007, Officer Mansour was interviewed at the CRRB (enc. 18a-c). Officer Mansour is a white male, 5’7” tall, weighing 160 pounds, with brown hair and blue eyes. On January 24, 2007, Officer Mansour worked a tour that began at 5:30 p.m. on January 23, 2007, and ended at 2:05 a.m. the following morning. Officer Mansour, Officer Hirsch, Officer Farren, and Sgt. Todaro were assigned to PSA1’s Anti-Crime team. They were dressed in plainclothes and assigned to an unmarked van. Officer Mansour read the following from his memo book: “At 00:30 hours, 1 under from § 87(2)(b). At 00:50 hours we were 84 at the PSA 1 precinct. I went administrative from there” (enc. 14a-c).

On January 24, 2007, at 12:15 a.m., Officer Mansour, Officer Hirsch, Officer Farren, and Sgt. Todaro were patrolling the § 87(2)(b) when the observed a green Mitsubishi driving through the projects without its headlights on. The officers followed the vehicle and pulled it over at the corner of § 87(2)(b) and § 87(2)(b). Officer Mansour approached the driver’s side of the vehicle and asked § 87(2)(b) the driver, for his license, registration, and insurance card. Officer Hirsch was at the back of the vehicle, Sgt. Todaro was behind Officer Mansour, and Officer Farren was standing on the passenger’s side of the car. § 87(2)(b) stated that he did not have a driver’s license or any paperwork for the vehicle. As Officer Mansour glanced in the car, he saw a “live round” of ammunition on the floor of the car by § 87(2)(b)’s feet. Officer Mansour asked § 87(2)(b) to step out of the car, which he did. At that point, Officer Mansour knew § 87(2)(b) was going to be placed under arrest for driving without a license and for having live ammunition in his car. Upon exiting his car, § 87(2)(b)

pushed Sgt. Todaro in the chest with two hands and took off running into the § 87(2)(b). Officers did not frisk § 87(2)(b) or strike him in the face before he took off running. Officer Mansour chased § 87(2)(b) followed by Officer Hirsch and Officer Farren. Officer Hirsch passed Officer Mansour during the foot pursuit and Officer Mansour told him there were live rounds of ammunition inside the car, so he should be cautious of § 87(2)(b) because he might have a gun on him.

§ 87(2)(b) ran towards the back of § 87(2)(b) (which was about one block away from where the initial car stop took place). There, he tried to open the door and escape to the inside of the building. Officer Hirsch grabbed one of § 87(2)(b)'s arms and Officer Mansour grabbed the other. § 87(2)(b) who is a muscular individual, wrestled his arm free from Officer Mansour's grasp and swung a punch that connected with Officer Hirsch's chest. In response, Officer Hirsch fell to the ground. § 87(2)(b) was also screaming, "Let me go! Leave me alone!" He was also yelling for his girlfriend to come open the building's back door so he could get inside. There were no civilians around other than § 87(2)(b). Officer Mansour called for assistance over the radio. (Officer Mansour found out later that a female witness called 911 to report that officers were being assaulted.) Then, Officer Farren caught up with them and tried to grab onto § 87(2)(b)'s arm, but he punched Officer Farren in the same way. Officer Farren took a step back and told § 87(2)(b) several times to stop resisting. Then, Officer Farren struck § 87(2)(b) twice in one of his legs. No other officer had his asp out. Officer Farren did not strike § 87(2)(b) anywhere other than his legs. After that, Officer Mansour and Officer Farren were able to handcuff § 87(2)(b) and escort him back to the location of the initial car stop. Sgt. Todaro had stayed at that location to secure § 87(2)(b)'s car and the officers' unmarked van.

One of the responding units transported § 87(2)(b) to the PSA 1 station house. When Officer Mansour and the other three officers arrived, § 87(2)(b) was in front of the desk area. Officer Mansour went to search § 87(2)(b) to check for any property and voucher it, but § 87(2)(b) wriggled his body away from the officer, screamed, and cursed. He seemed adamantly against being searched. At one point during the struggle to search him, Officer Mansour felt "something" in the rear waistband area of § 87(2)(b)'s sweatpants. He let Sgt. Todaro know that he had felt something. Sgt. Todaro decided that they should not take the handcuffs off of § 87(2)(b) before thoroughly searching him and determining what he had in his buttock area. They took § 87(2)(b) to the rear holding cell area and told him they needed to search his pants to make sure he did not have a weapon or anything else in his rear waistband area. § 87(2)(b) kept screaming and moving away from the officers. They decided to call ESU rather than deal with § 87(2)(b)'s resistance. In the meantime, however, the officers were able to talk § 87(2)(b) into calming down and letting them search him. Sgt. Todaro authorized a strip search of § 87(2)(b) to look for narcotics and weapons. This was the first time a strip search was conducted; no officer strip-searched him at the initial incident location or near the desk area of the station house. The strip search yielded thirty-six bags of heroin that were stashed in the waistband of § 87(2)(b)'s underwear. § 87(2)(b) removed the drugs himself—no officer entered § 87(2)(b)'s anal cavity. Officer Mansour, Officer Hirsch, Officer Bowens, and Sgt. Todaro were the only officers present in the holding cell area and there were no other prisoners present.

Then, Officer Mansour searched § 87(2)(b)'s car because it was seized and was vouchered as arrest evidence. The following items were recovered from § 87(2)(b)'s car. Thirteen small bags of heroin, two bigger bags of heroin, and one twist of cocaine were found inside a Pringle's container on the front seat of the car. A large plastic bag of approximately one ounce of heroin was found in the glove compartment. Twenty-one ammunition rounds were recovered. \$1,015 of U.S. currency was recovered on § 87(2)(b)'s person.

§ 87(2)(b) had some bruises on his leg from Officer Farren striking him with an asp, so officers called him an ambulance. He did not have any other visible injuries. § 87(2)(b) was never deemed an EDP by officers, though he was screaming, cursing, and yelling and officers throughout the incident and refusing to be searched. To Officer Mansour's knowledge, § 87(2)(b) was not admitted to the psychiatric ward upon arrival at the hospital.

No officer told § 87(2)(b) to "back the fuck up" at any point during this incident. No officer called him a "Nigger" during the incident. No officer pushed § 87(2)(b)'s face into the cell bars. No officer punched him in the ribs or struck him in the jaw. No officer threatened § 87(2)(b) with force or threatened to carry him out to the ambulance in a bag. ESU did respond to the station house, but they immediately left once officers told them the situation was under control. Officer Mansour never

encountered § 87(2)(b)'s girlfriend or a § 87(2)(b) Hispanic male at the incident location or at the station house. § 87(2)(b)'s girlfriend did come to the station house, but Officer Mansour did not participate in any interactions with her. He later heard that she had claimed to be a NYC Corrections officer, but when asked to see her ID, she refused, became very belligerent, and left. Officer Mansour did not know how officers dealt with her. Other officers told him later that she had showed up at the hospital and the same interaction had taken place. Officer Mansour did not know the name of desk sergeant that day, nor did he know the names of the officers at the hospital. However, he believed Officer Bowens went with § 87(2)(b) to the hospital so he might have interacted with the girlfriend. Officer Mansour never returned to the girlfriend's residence and vandalized her door, nor did any other officers (to his knowledge).

Subject Officer Statement: Officer Erik Hirsch

On May 17, 2007, Officer Hirsch was interviewed at the CCRB (enc. 22a-c). Officer Hirsch is a § 87(2)(b)-old white male, § 87(2)(b), weighing § 87(2)(b), with brown hair and brown eyes. On January 24, 2007, Officer Hirsch worked a tour that began at 5:30 p.m. the night beforehand and ended at 2:05 a.m. Officer Hirsch was assigned to Anti-Crime with Sgt. Todaro, Officer Farren, and Officer Mansour. They were dressed in plainclothes and assigned to an unmarked black van. Officer Hirsch read the following from his memo book: "00:37, PO Mansour CPCS arrest. 00:45, 84 at PSA 1. 01:30, en route to § 87(2)(b) with PO Farren. 03:40, 98" (enc. 21a-c).

On January 24, 2007, at approximately 12:15 a.m., Sgt. Todaro was driving out of the § 87(2)(b) housing complex. Officer Hirsch, Officer Farren, and Officer Mansour were passengers in the car. They observed a car driving towards them on § 87(2)(b) towards § 87(2)(b). The vehicle did not have its headlights turned on. It turned left on § 87(2)(b) and made another left on § 87(2)(b). Sgt. Todaro followed the vehicle and stopped it right after it turned on § 87(2)(b) by activating the lights and siren in the unmarked police van. The driver of the vehicle—§ 87(2)(b)—pulled over immediately. Officer Hirsch remained in the van while the other three officers exited to conduct the car stop and speak to § 87(2)(b). Sgt. Todaro approached the driver's side of the vehicle while Officer Mansour and Officer Farren approached the passenger's side.

While inside the van, Officer Hirsch ran a check on § 87(2)(b)'s license plate and found that the vehicle was not stolen. About ten seconds after the other three officers had approached the car, Officer Hirsch exited the van to relay to them that the car had not been stolen. Officer Hirsch heard Sgt. Todaro ask for § 87(2)(b)'s license and registration. Then, Sgt. Todaro asked § 87(2)(b) to step out of his car. § 87(2)(b) did so, but as he exited the vehicle he pushed Sgt. Todaro with two hands, sending Sgt. Todaro backwards five or six steps. No officer struck § 87(2)(b) or tried to strike him as he exited the vehicle. Then, § 87(2)(b) took off running towards the § 87(2)(b). One of the other three officers yelled that § 87(2)(b) had bullets on him or in his car. Officer Hirsch did not recall who said this. Officer Hirsch ran after § 87(2)(b) and followed him until he caught up with him at the back of § 87(2)(b). § 87(2)(b) tried to open the backdoor to the building, but Officer Hirsch grabbed his left arm to prevent him from escaping. At that, § 87(2)(b) turned around and punched Officer Hirsch on the left side of his face. Officer Hirsch dropped to one knee and tried to hold onto § 87(2)(b)'s waist to keep him from fleeing.

Officer Mansour and Officer Farren arrived simultaneously a few seconds later. Officer Mansour tried to grab hold of § 87(2)(b) who responded by "throw[ing] Officer Mansour against the wall or against the garbage or something." Officer Hirsch did not see exactly what happened because he was holding onto § 87(2)(b)'s legs and saying, "Someone 'cuff him!" Then, § 87(2)(b) "kind of threw Officer Farren around a bit." While Officer Mansour and Officer Farren were trying to handcuff § 87(2)(b) he repeatedly said, "Get the fuck off of me, you mother fuckers!" Officer Hirsch did not recall § 87(2)(b) ever crying out for help during the struggle. Officer Farren told § 87(2)(b) to stop resisting and give them his hands. However, § 87(2)(b) kept "pushing everybody and throwing everybody around." Officer Farren told § 87(2)(b) approximately three times that if he did not stop resisting, Officer Farren was going to strike him with his asp. After § 87(2)(b) refused to stop resisting, Officer Farren struck § 87(2)(b) two times in the back of one of his legs. Once he had been struck, § 87(2)(b) resisted slightly less and therefore the three officers were able to place him in handcuffs. However, even after § 87(2)(b) was in handcuffs, he did not stop resisting. Officer Hirsch could not estimate how long it took to subdue § 87(2)(b) and put him in handcuffs. Even after he was handcuffed, he pushed officers with his body and tried to prevent them from walking him back

to their car. Initially, Officer Hirsch said that at some point, Sgt. Todaro arrived and assisted in handcuffing § 87(2)(b). Later, he said that Sgt. Todaro remained with the police vehicle and § 87(2)(b)'s vehicle and that he never arrived at the back of § 87(2)(b).

Officer Hirsch did not recall if § 87(2)(b) was searched before being placed in a police vehicle for transport. However, he noted that a search probably took place because he was under arrest and officers needed to ensure that he did not have any weapons on him before transporting him to the station house. Officer Hirsch did not recall who transported § 87(2)(b) there. Later, Officer Hirsch found out that someone inside § 87(2)(b) had called 911 to report that someone was beating up police officers and, as a result, multiple other marked police cars had responded to the location. Officer Hirsch could not estimate how many officers or cars responded. No other officers were present while Officer Hirsch, Officer Farren, and Officer Mansour struggled to handcuff § 87(2)(b). There were no other plainclothes officers on scene other than Officer Hirsch and his three partners.

Once at the precinct, Officer Hirsch and one of the other officers he was working with (he did not recall which officer this was) took § 87(2)(b)'s pedigree information for his arrest paperwork. § 87(2)(b) was still combative and loud at this point. Then, Officer Mansour, Officer Hirsch, and Sgt. Todaro walked § 87(2)(b) back to the prisoner holding cell area. The three officers went back to that area because they believed that § 87(2)(b) might become physically combative again when they took the handcuffs off of him. No officer strip-searched § 87(2)(b). Shortly after the officers brought § 87(2)(b) to the prisoner holding cell area, an ambulance arrived to take Officer Farren to the hospital and Officer Hirsch accompanied him. Officer did not sustain any injuries from being punched in the face and he did not seek any medical treatment. Officer Hirsch did not know what, if anything, occurred between officers and § 87(2)(b) at the station house after Officer Hirsch and Officer Farren left.

Officer Hirsch never interacted with § 87(2)(b) either at the station house or a week later at her apartment—§ 87(2)(b) § 87(2)(b). He never went to her home or damaged her peephole. He did not know if any other officers interacted with her or went to her house and damaged her property. He never interacted with a female at the station house who was inquiring about § 87(2)(b)'s arrest. No officer handcuffed § 87(2)(b) to the scaffolding of § 87(2)(b) or to the metal pole at the station house desk. No officer ever punched or kicked him either. No officer dispensed pepper spray or used a taser against § 87(2)(b). No officers used any profanities or racial slurs against § 87(2)(b) during this incident. Officer Hirsch did not notice any civilians gathering at § 87(2)(b) and he did not hear any officer, including himself, threaten to arrest any civilians or make any threats of force.

Subject Officer Statement: Officer Justin Farren

On May 10, 2007, Officer Farren was interviewed at the CCRB (enc. 20a-c). Officer Farren is a § 87(2)(b)-old white male, § 87(2)(b), weighing § 87(2)(b), with brown hair and hazel eyes. On January 24, 2007, Officer Farren worked a tour that began at 5:30 p.m. the day beforehand and ended at 2:05 a.m. Officer Farren was assigned to PSA 1 Anti-Crime along with Sgt. Todaro, Officer Mansour, and Officer Hirsch. They were dressed in plainclothes and assigned to an unmarked black van, vehicle number 9567. Sgt. Todaro was the operator of the van. Officer Farren read the following from his memo book: "00:37, one under by PO Mansour for CPCS 2nd degree. 00:45, 84 at PSA 1. 01:30, PO Farren to § 87(2)(b) for right shoulder injury. 03:40, 84 at PSA1 (enc. 19a-d)."

On January 24, 2007, at 12:15 a.m., in the vicinity of § 87(2)(b) and § 87(2)(b) Officer Farren, Officer Mansour, Officer Hirsch, and Sgt. Todaro were patrolling the § 87(2)(b). There are pathways throughout the housing development that are wide enough for a car to drive on; the officers were patrolling the housing project on those pathways. They observed § 87(2)(b) driving towards them in a green Mitsubishi Gallant without its headlights or taillights turned on. § 87(2)(b) turned left onto § 87(2)(b) and then turned left again on § 87(2)(b). The officers stopped § 87(2)(b)'s car at § 87(2)(b) and § 87(2)(b) because he was driving without his lights on and because the tints on his windows appeared to be very dark. The officers activated their lights and sirens and § 87(2)(b) pulled over right away. Officer Farren approached the passenger's side of the vehicle and Officer Mansour approached the driver's side of the vehicle. Officer Mansour asked for § 87(2)(b)'s license and registration. Officer Farren could not hear § 87(2)(b)'s response to that request because the passenger's side window was closed. A few seconds later, he asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) exited his vehicle on his own—no officer opened his door or pulled him out. As § 87(2)(b) stepped out of his car, he pushed Sgt. Todaro in the middle of his

chest with two hands. Sgt. Todaro stumbled eight or ten feet backward and § 87(2)(b) took off running into the § 87(2)(b).

Officer Hirsch and Officer Mansour ran after § 87(2)(b) and Officer Farren ran around to the back of the housing development because he thought he might catch up with him before the other officers. Officer Farren arrived at the back of § 87(2)(b) approximately ten seconds after he had started running. Officer Mansour and Officer Hirsch had already caught up with § 87(2)(b). Suddenly, § 87(2)(b) punched Officer Hirsch in the face. Officer Hirsch fell to the ground, but kept holding onto § 87(2)(b)'s legs. Officer Mansour struggled to hold onto § 87(2)(b) so he could place him in handcuffs. Officer Mansour held onto § 87(2)(b)'s arm as he threw Officer Mansour against a nearby gate. When Officer Farren went to grab § 87(2)(b)'s hands, he threw Officer Farren against the same gate. Officer Farren repeatedly told § 87(2)(b) to stop resisting and give them his hands, but he refused to put his arms behind his back and be handcuffed. Officer Mansour was still holding onto § 87(2)(b)'s right arm as he tried to open the door to § 87(2)(b) and run inside the building. § 87(2)(b) was yelling things such as "stop harassing me" and "leave me alone," but he never called out anyone's name. No one came out of the building during this incident.

During the struggle, Officer Mansour yelled to Officer Farren that § 87(2)(b) had bullets in his car, so the officers should be careful because he might have a weapon on him. Officer Farren was concerned for his and his partners' safety because § 87(2)(b) was very large and muscular, he had punched an officer, and he might have had a weapon on him. Officer Farren warned § 87(2)(b) three times that if he did not stop resisting and put his hands behind his back Officer Farren would use his asp against him. § 87(2)(b) did not stop resisting, so Officer Farren struck § 87(2)(b) twice in the back of his right calf. After that, Officer Farren was able to grab hold of § 87(2)(b)'s left arm, but he was still struggling to break free from the officers. § 87(2)(b)'s arms were so strong that in his struggle to break free from the officers, he dislocated Officer Farren's right shoulder. Eventually, Officer Mansour and Officer Farren were able to put § 87(2)(b)'s arms behind his back and handcuff him. They did not handcuff him to the scaffolding outside § 87(2)(b). No officer kicked or punched § 87(2)(b) in his face or the rest of his body. After § 87(2)(b) was in handcuffs, Sgt. Todaro arrived at the back of the building. § 87(2)(b) was not frisked or searched before he was placed in handcuffs and deemed to be under arrest. Officer Farren did not see § 87(2)(b) tug at any of his clothing while he was being handcuffed. No drugs were recovered from his person immediately after he was handcuffed in Officer Farren's presence. Officer Farren did not know who searched § 87(2)(b) after he was in handcuffs and he did not know if anything was found on him.

As Officer Farren, Officer Mansour, and Officer Hirsch were walking § 87(2)(b) back to their vehicle, other officers were arriving on scene. All vehicles were marked and all officers were dressed in uniform. Officer Farren did not know any of the officers' names. Officer Farren later found out that a resident of § 87(2)(b) had called 911 to report that police officers were being assaulted outside the building. Officer Farren did not know who transported § 87(2)(b) to the station house. Once he arrived back at the station house, Officer Farren went to § 87(2)(b) for treatment for his shoulder. He filed Line of Duty Injury paperwork for his shoulder. Officer Farren did not have any further interaction with § 87(2)(b) once he arrived at the station house. He did not see § 87(2)(b) at the station house. He did not speak to anyone about what occurred after he left the station house. He did not know if § 87(2)(b) was strip-searched at any point. No officer cursed at § 87(2)(b) or used any racial slurs when speaking to him. Officer Farren did not recall any female coming to the station house to inquire after § 87(2)(b)'s arrest. Officer Farren never went to § 87(2)(b) on a later date and interacted with a female by the name of § 87(2)(b).

Witness Officer Statement: Officer Jerry Bowens

On November 9, 2007, Officer Bowens was interviewed at the CCRB (enc. 24a-b). Officer Bowens is a § 87(2)(b)-old black male, § 87(2)(b), weighing § 87(2)(b), with black hair and brown eyes. On January 24, 2007, Officer Bowens worked a tour that began at 5:30 p.m. the day beforehand and ended at 2:05 a.m. Officer Bowens was assigned to the PSA 1 Anti-Crime team. He was assigned to an unmarked red van, vehicle number 9532. He did not recall who his partner was that day. Officer Bowens did not have any relevant memo book entries (enc. 23a-b).

On January 24, 2007, at approximately 12:25 a.m., Officer Bowens was in the PSA1 station house performing unknown duties when he heard an officer mention that other Anti-Crime officers had arrested someone. Officer Bowens went back to the holding cell area to see whom they had arrested. He did not go

there because of any sort of commotion or noise; nothing in particular drew his attention to the holding cell area. Officer Bowens did not recall if there were any other prisoners in the holding cell with § 87(2)(b). He did not recall which officers were present either. The officers were trying to remove the handcuffs from § 87(2)(b)'s wrists, but he kept saying they could not take the handcuffs off of him. Officer Bowens entered the cell and told § 87(2)(b) that it was in his best interest to calm down and let the officers take off the handcuffs. § 87(2)(b) was complaining of pain, but Officer Bowens did not observe any injuries on him nor did he recall what type of pain § 87(2)(b) said he was experiencing. After Officer Bowens spoke to him, § 87(2)(b) calmed down and allowed the officers to remove his handcuffs. Officer Bowens left the holding cell area and did not see § 87(2)(b) again until later when an ambulance arrived and took him to the hospital. Officer Bowens had not seen § 87(2)(b) before he entered the holding cell area, either inside the station house or at the arrest location. He did not witness any officers use force against § 87(2)(b) nor did he use any force against him or threaten to use force against him. Officer Bowens did not know the circumstances surrounding § 87(2)(b)'s arrest, but he heard that officers found "a lot of drugs" on him. Officer Bowens did not strip search § 87(2)(b) nor did he witness any other officers do so.

Medical Records

§ 87(2)(a) PBH §18(6)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Police Department Documents

SPRINT job number § 87(2)(b) shows that at 12:17 a.m., the 60th Precinct Anti-Crime sergeant called into central that he was at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. Officers were pursuing a civilian on foot. The civilian was believed to be near the rear bushes by § 87(2)(b) and § 87(2)(b). 60th Precinct's sector C responded to the initial location to secure the vehicle. At 12:21 a.m. the perpetrator was in custody and at 12:23 a.m. all units left the location because people were throwing airmail at the officers from the windows of the building. At 12:37 a.m., ESU responded to PSA1 because the prisoner was an EDP (enc. 26a-b). The PSA1 roll call shows that on January 23, 2007, during tour 3, Sgt. Todaro was the Anti-Crime supervisor and was assigned to vehicle number 9567. Officer Mansour, Officer Hirsch, and Officer Farren were assigned to the Anti-Crime team and were working in vehicle number 9567 as well. Officer Bowens was also assigned to Anti-Crime, but he was working in vehicle number 9629 with Officer Franklin (enc. 27a-b). The prisoner holding pen roster shows that § 87(2)(b) was in the holding cell from 12:55 a.m. until § 87(2)(b) when he was removed to § 87(2)(b). He returned to the holding cell at 10:45 a.m. and left for Brooklyn Central Booking at 4:05 p.m. Both times he was guarded by Officer Mansour (enc. 28a).

Officer/Complainant Histories

During Sgt. Todaro's fourteen years of service to the NYPD, he has been disciplined once as a result of a CCRB investigation. In CCRB case number 200400822, the Board substantiated an allegation that Sgt. Todaro had issued a retaliatory summons. The Board recommended charges and the NYPD issued a penalty of instructions (enc. 1a-b). The CCRB has not substantiated any allegations against Officer Farren or Officer Hirsch during their five years of service to the NYPD (enc. 2a and 4a). The CCRB has not substantiated any allegations against Officer Mansour during his six years of service to the NYPD (enc. 3a). This is § 87(2)(b) and § 87(2)(b)'s first and only CCRB complaint (enc. 5a and 6a).

Complainant's Criminal Conviction History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Conclusions and Recommendations

Officer Identification

Sgt. Todaro, Officer Hirsch, and Officer Farren were identified using police documents, § 87(2)(b)'s descriptions, and their own statements in which they described their roles in the incident. Officer Bowen and Officer Mansour were identified by name, and they confirmed their involvement during their interview statements. § 87(2)(g)

Disputed and Undisputed Facts

It is undisputed that Sgt. Todaro, Officer Mansour, Officer Hirsch, and Officer Farren stopped § 87(2)(b)'s car. § 87(2)(g)

It is undisputed that Officer Mansour, Officer Hirsch, and Officer Farren used physical force against § 87(2)(b) at the back of § 87(2)(b) § 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that he was sitting in his car when officers stopped him. § 87(2)(g)

§ 87(2)(b) alleged that once the officers had stopped his car, Officer Farren allegedly frisked him and two officers searched his car. However, § 87(2)(b) did not see which two officers searched his car, nor did he see where they searched inside the vehicle. No officer that was present at the initial car stop acknowledged searching § 87(2)(b)'s car at the arrest location and none of them said Officer Farren frisked § 87(2)(b). All four officers stated that § 87(2)(b) ran away from officers immediately after he exited his vehicle. § 87(2)(b) stated that it was not until Officer Farren threw a punch at his face that he ducked to avoid being punched and then ran away from the four officers. § 87(2)(g)

§ 87(2)(b) alleged that officers caught up to him at the back of § 87(2)(b) and struck him repeatedly for five-to-ten minutes with their fists, feet, and asps. § 87(2)(g)

Officer Mansour, Officer Hirsch, and Officer Farren acknowledged using force against § 87(2)(b) but they stated that he was larger than all three of them combined and was throwing them against gates and doors. The officers also acknowledged that Officer Farren struck § 87(2)(b) in his leg twice with an asp § 87(2)(g)

§ 87(2)(b) alleged that after officers stopped using force against him, officers called him “nigger.” However, he could not see which officers said this, nor could he describe them. No officer acknowledged having used racial slurs against § 87(2)(b) during the incident. § 87(2)(b) and § 87(2)(b) did not hear officers call § 87(2)(b) “nigger.”

§ 87(2)(b) alleged that he was strip-searched at the initial incident location, in front of the desk area at the station house, and inside the holding cell. Sgt. Todaro stated that § 87(2)(b) was strip-searched inside the holding cell area because of movements he had been making towards his waistband and because § 87(2)(b) had been reacting violently and loudly to officers’ attempts to search him. Sgt. Todaro stated that he was present for the strip search and he noted it in the command log. Officer Mansour and Officer Hirsch conducted the strip search. § 87(2)(g)

§ 87(2)(b) Officer Mansour stated that he felt a bulge in the rear waistband area of § 87(2)(b)’s pants during a search and when he notified Sgt. Todaro of that fact, Sgt. Todaro authorized a strip-search. Officer Mansour stated that he and Sgt. Todaro were present for the strip search and it took place in the holding cell area. In his statement, Officer Hirsch denied anyone having strip-searched § 87(2)(b) at any point during the incident. Officer Farren stated in his interview that he did not know if § 87(2)(b) was strip-searched. Officer Bowens, whom § 87(2)(b) stated was present for the final strip-search, stated that no one strip-searched § 87(2)(b). § 87(2)(g)

After officers had strip-searched him, Sgt. Todaro allegedly told § 87(2)(b) “We run this shit.” § 87(2)(b) also alleged that Officer Mansour rubbed his face into the bars of the holding cell and hit him repeatedly in his ribs. § 87(2)(b) also alleged that Officer Mansour punched him in the jaw and told him to “shut the fuck up.” Sgt. Todaro and Officer Mansour denied having done any of those things. § 87(2)(g)

§ 87(2)(b) also alleged that officers came into the holding cell and threatened to use force against him if he did not willingly walk out to the ambulance on his own. § 87(2)(b) could not describe the officers that said this to him and no officer acknowledged having made any threats of force to him in the holding cell.

§ 87(2)(b) alleged that at the station house, twelve officers in white shirts and plainclothes physically pushed her out of the station house and threatened to arrest her if she did not leave. § 87(2)(g)

§ 87(2)(b) alleged that officers told § 87(2)(b) to “shut the fuck up” at the initial incident location, but § 87(2)(b) did not make that allegation and § 87(2)(b) said he did not hear any officer curse at his mother. § 87(2)(g)

Allegation A) Abuse of Authority: At § 87(2)(b) Sgt. John Todaro authorized officers to stop the car in which § 87(2)(b) was an occupant.

§ 87(2)(g) Officer Mansour also documented in the arrest report that § 87(2)(b) was committing that VTL violation when officers initially stopped him in his vehicle. § 87(2)(g) . Barry Kamins writes in *New York Search & Seizure* that an officer may stop someone in their vehicle for committing a VTL violation such as operating a vehicle at night without headlights activated (enc. 0.5a). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation A be exonerated.

Allegation B) Abuse of Authority: At § 87(2)(b) Officer Justin Farren frisked § 87(2)(b)

§ 87(2)(b) alleged that Officer Farren frisked him at the back of his vehicle and that it was not until Officer Farren tried to punch him that he ran away from officers. However, the officers all stated that § 87(2)(b) exited his vehicle when asked to provide ID, pushed Sgt. Todaro in his chest, and fled from officers. There was no point when Officer Farren frisked § 87(2)(b) before he fled the scene.

§ 87(2)(g)

it is recommended that Allegation B be unsubstantiated.

Allegation D) Force: At § 87(2)(b) Officer Fadi Mansour used physical force against

§ 87(2)(b)

Allegation E) Force: At § 87(2)(b) Officer Erik Hirsch used physical force against

§ 87(2)(b)

Allegation F) Force: At § 87(2)(b) Officer Justin Farren struck § 87(2)(b) with an asp.

§ 87(2)(b) alleged that officers punched him, kicked him, and struck him with an asp. He alleged that this went on for five-to-ten minutes and that officers struck him all over his body. § 87(2)(b)'s medical records did not corroborate the allegations he made and neither did his arrest photo in which he has no visible injuries. § 87(2)(g)

Therefore, it is recommended that Allegations D, E, and F be unsubstantiated.

Allegation H) Abuse of Authority: At the PSA1 station house, Sgt. John Todaro authorized the strip search of § 87(2)(b)

§ 87(2)(g)

it is recommended that Allegation H be unsubstantiated.

Allegation I) Discourtesy: At the PSA1 station house, Sgt. John Todaro spoke rudely to § 87(2)(b)

Allegation J) Force: At the PSA1 station house, Officer Fadi Mansour used physical force against

§ 87(2)(b)

Allegation K) Discourtesy: At the PSA1 station house, Officer Fadi Mansour spoke rudely to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that when he was in the holding cell area, Sgt. Todaro and Officer Mansour cursed at him, and Officer Mansour also repeatedly struck him in the face and ribs. § 87(2)(g)

Considering the above, it is recommended that Allegations I, J, and K be unsubstantiated.

Allegation C) Abuse of Authority: At § 87(2)(b) Officers searched the car in which § 87(2)(b) was an occupant.

Allegation G) Offensive Language: At § 87(2)(b) Officers made remarks to § 87(2)(b) based on race.

Allegation L) Abuse of Authority: At the PSA1 station house, officers threatened § 87(2)(b) with the use of force.

Allegation M) Force: At the PSA1 station house, officers used physical force against § 87(2)(b)

Allegation N) Abuse of Authority: At the PSA1 station house, officers threatened to arrest § 87(2)(b) § 87(2)(b)

§ 87(2)(b) stated that at the initial incident location, officers searched his car, and other officers called him “nigger.” He also stated that at the station house, before he was taken to the hospital, officers came into the holding cell and told him to walk out to the ambulance on his own or he would be “knocked out” and taken out in the bag they were holding. § 87(2)(b) also stated that officers pushed her out of the station house and threatened to arrest her if she did not leave. § 87(2)(g)

it is recommended that Allegations C, G, L, M, and N be closed as officers unidentified.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: